Licence and Ownership

D & S Electric Works. Position on section 5 of your enquiry.

> **Status: NEGOTIATION DRAFT. Not approved.** The position in section 1 is the company's decision. The final wording must be reviewed by counsel before it is relied on, and nothing here is a contract until signed.

1. The position

- **DSEW owns its business data**, including everything it enters or uploads, and can take a documented export (records as CSV, files in original form with an index) at handover and once more on request during the 12-month period.
- **On full payment, DSEW receives the agreed deliverables and their source code:** the DSEW-specific code, configuration, templates and documentation produced for this project, handed over in a repository DSEW controls.
- **PlotArmour keeps its pre-existing assets:** Verity's platform, tools, reusable libraries, frameworks and general know-how stay PlotArmour's. **DSEW receives a perpetual, non-exclusive licence to use those components within the delivered solution** for its own business, at one site, for up to 15 named users, included in the one-time fee. More users or sites are priced separately.
- We do not use DSEW's confidential drawings, prices, specifications or quality formats for anyone else, under a mutual NDA.
- Open-source components used (for example PostgreSQL, Keycloak, Next.js) stay under their own licences, listed in a licence inventory at handover. No paid third-party component is needed.

2. Your nine questions

#	Question	Answer
1	Complete source code delivered?	The source code of the DSEW-specific deliverables, on full payment. Verity's pre-existing platform components are licensed for use within the solution; source access to them is an open point (section 3)
2	Does DSEW own the custom code and IP?	DSEW owns its business data and receives the agreed deliverables and their source code on full payment. PlotArmour retains pre-existing tools, libraries, frameworks and know-how. The exact ownership-versus-licence wording for the DSEW-specific code is for counsel (section 3)
3	Can DSEW or another developer modify the code?	Yes for the DSEW-specific deliverables handed over. For pre-existing components, subject to section 3
4	Can it run without dependence on you?	It runs on DSEW's server day to day, with runbooks for install, backup, restore and upgrade. Updates to Verity's pre-existing components come from PlotArmour
5	Proprietary frameworks, paid components, recurring licences?	PlotArmour's pre-existing components are licensed as above. No paid third-party components or recurring licence fees; the only recurring charge is the 12-month bundled fee in document 1

#	Question	Answer
6	Schema, API docs, deployment scripts, technical documents?	Yes for the delivered scope: architecture overview, database schema, API notes, deployment scripts and configuration, administrator and user guides, runbooks
7	Repository access from the beginning?	No. The repository is handed over on full payment
8	Credentials, deployment instructions, backup procedures?	Yes, through a signed handover checklist, with credentials rotated at handover
9	Use limited to DSEW; no resale?	Yes. DSEW may not resell, sublicense or share PlotArmour's pre-existing components. We will not resell or disclose DSEW's confidential material

3. Open points for the company and counsel

None of these is decided. No fee is included for any of them.

#	Open point
1	Final legal wording of the ownership and licence clauses above, reviewed by counsel
2	Whether DSEW gets source access to, or modification rights over, PlotArmour's pre-existing components, and on what terms
3	What DSEW can rely on if PlotArmour stops supporting Verity's pre-existing components (continuity or escrow arrangement, if any)
4	Whether general improvements funded by DSEW may be reused by PlotArmour, with DSEW's data and formats excluded
5	Licence extension to affiliates, additional sites or more users, and on what terms
6	Liability, warranty and indemnity clauses; governing law and dispute resolution

This document is not ready for signature until counsel has reviewed it.